

1 KOSTIANTYN MARS  
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4 KOSTIANTYN MARS, PRO SE

5  
6 **UNITED STATES DISTRICT COURT**  
7 **WESTERN DISTRICT OF TEXAS**  
8 **AUSTIN DIVISION**  
9

10 KOSTIANTYN MARS

11 Removing Defendant / Movant,

12 vs.

13 THE PEOPLE OF THE STATE OF  
14 CALIFORNIA,

15 Respondent.  
16

) Case No.: B2402220  
)

) **MOTION TO DISMISS CRIMINAL CASE**  
) **B2402220**  
) **(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983;**  
) **Fed. R. Civ. P. 81)**

) **DATE:**  
) **TIME:**  
) **DEPT:**  
)

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20 **MOTION TO DISMISS CRIMINAL CASE B2402220**  
21 **(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983; Fed. R. Civ. P. 81)**  
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23 Movant Kostiantyn Mars respectfully moves this Court to dismiss Santa Clara County Superior  
24 Court Criminal Case No. B2402220 with prejudice and to expunge all related warrants and  
25 records.  
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## I. LEGAL BASIS

The criminal prosecution rests entirely on an alleged violation of a Domestic Violence Restraining Order dated November 28, 2023. That order is void ab initio under California Code of Civil Procedure § 170.4(d) because it was signed by disqualified Judge Andrea Flint after a timely Statement of Disqualification was filed on November 13, 2023.

A void order cannot support a criminal charge under Penal Code § 273.6. Consequently, the charging document fails to state a public offense (Penal Code § 1004). Dismissal is therefore warranted in the furtherance of justice (Penal Code § 1385) and to prevent further deprivation of Movant's federal constitutional rights (42 U.S.C. § 1983).

This Motion is supported by the Consolidated Evidence Binder - Exhibit A filed concurrently herewith, which contains the Statement of Disqualification, the void DVRO, the February 7, 2024 hearing transcript demonstrating extortion and threats of malicious prosecution, video evidence of the unlawful arrest and denial of hearings, and all other evidence establishing the legal defect and due process violations.

## II. RELIEF REQUESTED

Movant respectfully requests that the Court:

1. **Dismiss** Criminal Case B2402220 with prejudice.
2. **Quash** and expunge all related warrants and records.
3. **Grant** such other and further relief as the Court deems just and proper.

Respectfully submitted,

DATED: April 8, 2026

  
KOSTIANTYN MARS  
Pro Se

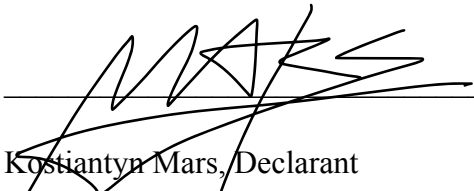
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7 **DECLARATION OF KOSTIANTYN MARS**  
8 **(28 U.S.C. § 1746 / CCP § 2015.5)**  
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10 I, Kostiantyn Mars, declare under penalty of perjury under the laws of the United States that  
11 the foregoing Motion is true and correct to the best of my knowledge and belief. The facts and  
12 supporting evidence are contained in the Consolidated Evidence Binder - Exhibit A filed  
13 concurrently herewith.

14 Executed on April 8, 2026 at Austin Texas.

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18 Kostiantyn Mars, Declarant  
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KOSTIANTYN MARS ) Case No.: B2402220  
)  
) (Santa Clara County Superior Court)  
)  
Removing Defendant / Movant, )  
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)  
vs. )  
)  
)  
THE PEOPLE OF THE STATE OF )  
CALIFORNIA, )  
)  
Respondent. )

Came on for consideration Movant's Motion to Dismiss Criminal Case B2402220. Having reviewed the Motion, the Declaration of Kostiantyn Mars, Exhibit A (Evidence Binder), the Civil RICO Complaint, the Notice of Removal, and all other papers on file, the Court finds that good cause exists for the relief requested.

**IT IS FURTHER ORDERED** that all related warrants and enforcement orders, including but not limited to:

- are hereby **QUASHED and EXPUNGED** from all records.

1 **IT IS FURTHER ORDERED** that the State of California and all its agencies shall take all  
2 necessary steps to expunge any and all records related to the dismissed case from  
3 law-enforcement and court databases within fourteen (14) days of the date of this Order.  
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5 **SO ORDERED** this \_\_\_\_\_ day of \_\_\_\_\_, 2026.  
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9 UNITED STATES DISTRICT JUDGE

10 Western District of Texas  
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